

[About Us](#)[Work passes](#)[Employment practices](#)[Workplace safety and health](#)[More](#) ✓[myMOM Portal](#)

## Jump To

[What is the Employment Act](#)[What is the Employment Act](#)[Who is covered by the Act](#)[Who is covered under Part IV](#)[Who is a manager or executive](#)[Who is a workman](#)

## Employment Act: who it covers

All employees under a contract of service with an employer are covered, but there are exceptions. For example, Part IV of the Act which provides for rest days, hours of work and other conditions of service, does not cover managers or executives.

### What is the Employment Act

The [Employment Act](#)  is Singapore's main labour law. It provides for the basic terms and conditions at work for employees covered by the Act.

#### Note

Foreign employees holding a work pass are also covered by the [Employment of Foreign Manpower Act](#), which outlines an employer's responsibilities and obligations for employing foreigners.

### Who is covered by the Act

You are covered if you are an employee working under a [contract of service](#) with an employer.

It covers local and foreign employees.

An employee can be employed in the following terms:

- Full-time
- **[Part-time](#)**
- Temporary
- Contract

An employee can be paid on the following basis:

- Hourly
- Daily
- Monthly
- Piece-rated

#### Note

If you work **less than 35 hours a week**, you are a part-time employee covered by the [Employment of Part-Time Employees Regulations](#).

However, you are **not covered** if you are employed as a:

- Seafarer
- Domestic worker
- Statutory board employee or civil servant

If you are not covered by the Employment Act, your terms and conditions of employment will be according to your **employment contract**.

#### Note

Term contract employees are a small but important part of a company's workforce. Employers are encouraged to adopt the **Tripartite Advisory on Employment of Term Contract Employees** .

## Who is covered under Part IV

Part IV of the Employment Act, which provides for **rest days, hours of work and other conditions of service**, only applies to:

- A workman (doing manual labour) earning a monthly basic salary of **\$4,500 or less**.
- An employee who is not a workman, but who is covered by the Employment Act and earns a monthly basic salary of **\$2,600 or less**.

Part IV of the Act **does not** cover all managers or executives.

#### Note

Basic salary excludes payment of overtime, bonus, annual wage supplement, productivity incentive payment, reimbursement for special expenses and all allowances.

## Who is a manager or executive

In general, managers and executives are employees with executive and supervisory functions.

Their duties and authority may include one or all of the following:

- Making decisions on issues such as recruitment, discipline, termination of employment, performance assessment and reward.
- Formulating strategies and policies of the enterprise.
- Managing and running the business.

They also include professionals with tertiary education and specialised knowledge or skills whose employment terms are like those of managers or executives. For example:

- Advocates and solicitors
- Chartered accountants
- Practising doctors and dentists

## Who is a workman

Generally, workman is someone whose work involves mainly manual labour.

This includes someone who falls under any of these categories:

- Does manual work (including artisans and apprentices, but not seafarers or domestic workers).
- Operates or maintains commercial vehicles with passengers.
- Supervises manual workers, but also performs manual work more than half their working time.
- Has a job specified in the First Schedule of the Employment Act, namely:
  - Cleaner
  - Construction worker
  - Labourer
  - Machine operator and assembler
  - Metal and machinery worker
  - Train, bus, lorry and van driver
  - Train and bus inspector
  - Workman employed at piece rates at an employer's premises



## Related questions

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### **Does the Employment Act cover temporary and contract employees?**

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Last Updated: 14 March 2024